

INDIVIDUAL OPINION BY M. HUBER.

[*Translation.*]

The reply to be given to the question submitted to the Court depends on the manner in which that question is interpreted, and in particular on the meaning to be given to the words "enable" and "special legal status". The answer will be in the affirmative if it is a question whether the special legal status of the Free City of Danzig, as arising out of the Treaty of Versailles, makes it possible for the Free City to become a Member of the International Labour Organization; on the other hand, it would be in the negative if the question related to a right for Danzig, without Poland's consent, to obtain admission to, and thereby to take part in the work of, the Organization.

Both the International Labour Office and the two Governments concerned emphasized the fact, especially at the outset of the arguments in Court, that there is in reality no dispute, but only a doubtful legal situation which they are desirous of helping to clear up. The Court would therefore hardly be responding to the intention which prompted the Governing Body and the Council of the League of Nations to consult it, if, starting from a particular hypothesis, it confined itself merely to a reply in the negative or the affirmative. It is rather for the Court to consider the different situations which may arise within the legal framework established by the Treaty of Versailles. For it is certain that the provisions of this Treaty, on the one hand, and those of subsequent agreements and decisions, on the other, are not all binding to the same extent for those directly concerned; there will thus be absolute incompatibilities and relative incompatibilities, according to the legal situations envisaged.

In the present affair, the Court is all the more justified in considering different possible situations in that its reply will in any case be hypothetical, for it has not to decide the preliminary and general question whether the Free City, apart from its special status, fulfils the conditions necessary for

admission as a Member of the International Labour Organization.

Being, by the terms of the request, obliged to deal with only one aspect of the problem, the Court must, while keeping within the request, throw light on all that side of the problem, without being held up by an incompatibility between the special status and Part XIII of the Treaty of Versailles if, without affecting the special status itself, this incompatibility might be overcome, either by an agreement between the Parties concerned, or by a unilateral concession. And thus—while remaining true to its traditional conception of advisory opinions—the Court, by means of purely juridical considerations, will best assist the Parties in finding a solution.

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This having been said, there are above all three points of a general nature to be considered.

1. The special legal status of the Free City is based on the clauses of the Treaty of Versailles which, on the one hand, provide for the protection of the Free City by the League of Nations (Art. 102 and 103), and which, on the other hand, lay down the rights of Poland in relation to Danzig, especially as regards the conduct by the Polish Republic of the foreign relations of the Free City (Art. 104 and Convention of November 9th, 1920). The three Parties directly concerned in this system are the Free City, the League of Nations and Poland. The Treaty of Versailles, and therefore the system established by that Treaty, is final and independent of the will of the Parties. But, in so far as any one of them is to be considered as holder of a right, he must be regarded as entitled to waive that right in any particular case or series of cases, unless such waiver should affect the system itself with a view to which the right was created. In contradistinction to a statutory right, a contractual right cannot be presumed to be binding on its holder.

2. Part XIII does not lay down that only States possessed of complete sovereignty both in foreign relations and as regards

domestic legislation can be Members of the Organization. By the reference which it contains to the Covenant of the League of Nations, Article 387 of the Treaty of Versailles admits self-governing colonies or dominions, besides States properly so-called. The International Labour Organization includes, or has included, communities whose mutual relations are essentially different from their relations with third Powers. Articles 405, paragraph 9, and 421, paragraph 2, contain important exceptions to their main provisions in favour of States which, although entirely independent in their foreign relations, may, owing to their internal political structure, be unable to apply throughout their territory conventions ratified by them. If therefore Part XIII takes account of very different situations arising from the internal structure of States or other communities Members of the Organization, as well as from their relations of external dependence, it is not possible *prima facie* to exclude the Free City from the International Labour Organization owing to its special legal status. The compatibility of that status with Part XIII is a question which must be examined having regard to the special circumstances of the case, and the answer to which cannot be prejudged by the fact that, as regards foreign relations, the Free City is not in a position to take independent action.

3. The relations of a Member of the International Labour Organization with that Organization cannot be placed on the same footing as relations arising from a treaty or multilateral convention. By Article 387, every Member of the League of Nations is and must be a Member of the International Labour Organization; the Preamble to Part XIII gives the reason for this connection. The Covenant of the League of Nations and Part XIII do not merely belong to the same Treaty, but are also organically connected. The adhesion of the largest possible number of Members of the League of Nations to conventions adopted by the Labour Conference is beyond doubt one of the purposes of Part XIII, the realization of which is the object of Articles 405, paragraphs 5 and 7, and 416. The Free City is not a Member of the League of Nations, but is protected by the League; it is further incorporated in the customs territory of Poland, a Member of the

League of Nations, which conducts the foreign relations of Danzig. As, therefore, the Free City lies entirely within the framework of the League of Nations, its admission to the International Labour Organization and its adhesion to conventions emanating therefrom cannot, in principle, be contrary either to the interests of the League of Nations or to those of a State Member of the League.

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These general considerations, which dominate the whole problem submitted to the Court, must be taken into account when the special legal status of the Free City and the provisions of Part XIII are being compared for the purpose of determining their absolute or relative compatibility or incompatibility.

The author of a separate opinion cannot make this detailed comparison in a case in which he cannot refer to corresponding statements and considerations in the Opinion of the Court to which his separate opinion is attached. I therefore limit myself to indicating the principal points on which in my view the Court should have given a decision.

The admission of the Free City to the International Labour Organization—that is to say, the creation of conventional relations between the Free City and the other Members of the Organization—seems to be governed by the same rules as the adhesion of the Free City to any convention, collective or otherwise. The fact that the adhesion of the Free City necessarily depends on the intervention of Poland, and that that State may possibly oppose it, does not exclude the possibility of the Free City's being a Member of the International Labour Organization, any more than it excludes its adhesion to the numerous international conventions to which it has in fact become a Party through the intermediary of Poland. This seems to decide indirectly in the affirmative another question connected with the special status, namely whether Danzig possesses the character of a State necessary for being a Member of the Organization.

The veto of the League of Nations, which may be interposed under Article 6, paragraph 2, of the Convention of Paris, is only hypothetical, as is the refusal of Poland, and does not in itself prevent the Free City from becoming a Member of the International Labour Organization; leaving aside the question whether this right of veto may really be applied in any eventuality, it is only a condition belonging to this special status. The same is true as regards any other possible intervention by the League of Nations in virtue of its right of protection.

The difficulty of the problem submitted to the Court lies in the incompatibility which there may be between the special legal status of the Free City and the rights and obligations which would arise for it from its position as Member of the Organization. As it would be absurd to admit a community which could not take part in the work, the question of admission is bound up with that of participation.

The fact that Poland might consent, in the name and on behalf of the Free City, to ask those concerned for the admission of the latter may be understood in various ways and must therefore be elucidated. If the consent resulted from a decision given in virtue of the procedure laid down by Article 39 of the Convention of Paris, it would leave intact the right of Poland itself to proceed, on behalf of the Free City, to any acts belonging to the conduct of foreign relations which the latter might wish or be bound to perform in its capacity as Member of the International Labour Organization. If the right of Poland to refuse to act on behalf of the Free City depends on the nature of the action requested—namely, whether it is contrary or not to essential interests of the Polish State—(High Commissioner's decision of December 17th, 1921; decision of the Council of the League of Nations of May 17th, 1922), Poland cannot in any case be obliged to waive her rights to conduct the foreign relations of the Free City. It is important therefore to ascertain (1) if and to what extent participation in the International Labour Organization comes within the field of foreign relations and therefore of the rights of Poland; and (2) if and to what extent the intervention of Poland, by virtue of this right,

in the relations between the Free City and the Labour Organization would be contrary to the provisions of Part XIII. In so far as there would be incompatibility, the admission of the Free City would depend on Poland's consent. But if this consent is not contrary to the special status—and for the reasons given above it is not so contrary—, that status cannot be regarded as being such as not to enable the Free City to become a Member of the International Labour Organization. The possibility still exists, although subject to certain conditions.

All these questions would not arise if the consent of Poland meant the abandonment by her, as regards possible relations between the Free City and the International Labour Organization, of her rights under Article 104 (6) of the Treaty of Versailles. In that case—having been admitted through the intervention and with the consent of Poland—the Free City would be in the same position as Members who conduct their foreign relations in entire independence.

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Coming now to the principal points in regard to which an incompatibility might exist, the following must be noted:

1.—Discussion in the Conference does not partake of the nature of foreign relations which characterizes the negotiations at a diplomatic conference; for, in view of the individual vote of each delegate (Article 390, paragraph 1), it is not the will of the States as persons in international law which is—in law at any rate—thereby expressed. The legal conception of foreign relations is connected with that of the individual or collective will of States in their relations one with another. The Conference would not therefore include a Danzig delegation under the leadership of the head of the Polish delegation, and the abnormal situation, incompatible with the structure of the Conference, which would be brought about if the

delegation of one Member was lead by that of another, could therefore not occur.

As however the purpose of discussion at the Conference is in particular the conclusion of international conventions, it is conceivable—although this extension of the notion may be criticized—to consider the appointment of delegates as an act of foreign policy. On this assumption, the appointment of the Danzig delegates might be submitted for approval to the Polish Government and would be forwarded by it; but once it had been so forwarded, the independent situation of the delegates, under Article 390, would be entirely in conformity with the system of the International Labour Organization.

2.—Conventions drawn up by the Conference and ratified by a Member create for the latter obligations going beyond those which he undertakes by the simple fact of his admission. The act of ratification therefore involves an act of foreign policy and consequently belongs to the domain in which Poland has the right to act for and on behalf of the Free City. Here however the intervention of Poland is no more an obstacle than it would be for the admission itself, or than it was in the past when any other convention was concluded of which the ratification is left entirely to the discretion of Members. The Organization has not to concern itself with the conditions in which its Members exercise or do not exercise their own rights. However, according to the interpretation given, in the statements submitted to the Court on behalf of the International Labour Office, to Article 405, paragraphs 5 and 7, the Member is bound to ratify if the competent authority—which is generally the legislative organ and which must have the draft conventions submitted to it within a specified time—has accepted a draft. In any case, whether it be a procedure peculiar to Part XIII or the normal procedure for the ratification of the convention, it is always an organ of the Member which expresses the will involving ratification. As this organ, whatever it be, is quite untrammelled in its decision, it in any case lies with the Free City not to approve a draft save under conditions which exclude any conflict between its obligations towards Poland, on the one

hand, and the International Labour Organization, on the other. This is therefore a point which can be settled between Poland and the Free City.

In the oral arguments submitted on behalf of the International Labour Office, it was mentioned that certain States Members had agreed to come to an understanding before ratifying a draft convention, in order to follow a uniform line of conduct in this domain. It therefore seems possible that the attitude of Members towards draft conventions may be determined by international undertakings other than those arising from Part XIII.

3.—As regards the procedure by enquiry and judicial procedure mentioned in Articles 411 and following, a distinction must be made between disputes which might arise between Poland and the Free City, on the one hand, and between the Free City and other Members of the Organization, on the other.

As regards the first category, the conflict between the jurisdiction referred to in Article 103 and that provided for by Part XIII of the Treaty of Versailles must and can be given a legal solution based on the relative values of the conflicting clauses of this same Treaty. As regards the second category of disputes, it is to be noted that the filing of a complaint or the institution of proceedings against a State falls within the sphere of foreign relations. But it is equally true that Members have here a right belonging to them, and nothing prevents the Free City from coming to an agreement with Poland as to the conditions in which it would make use of that right; this would permit Poland not to refuse her consent to the admission, on that ground.

4.—The question of the economic measures (which cannot be taken on the initiative of one Member of the Organization) does not seem capable of giving rise to difficulties, unless it be on account of the customs union between Poland and the Free City. It would however hardly be possible for any obstacle to exist on this ground as far as the Labour Organization is concerned; for it is already recognized that a State connected with another State by a customs union may nevertheless be a Member of the Organization.

The points I have dealt with in no way claim to exhaust the subject. But I think that guidance should be given at least on these points, if the question put to the Court is to receive an answer of such usefulness as those concerned may well have expected.

(Signed) MAX HUBER.
